

SUPPLIER NON-DISCLOSURE AGREEMENT

PART 1 – SIGNATURES AND KEY TERMS

Recipient		F&P	
Name	University of Auckland	Name	
Address	22 Princes Street Auckland 1010 New Zealand	Address	
Email		Email	
Contact Person		Contact Person	
Agreed for the Recipient by:		Agreed for by:	
Signature:		Signature:	
Name:		Name:	
Position:		Position:	
Date:		Date:	

Purpose
To enable to provide the Recipient with confidential information about for the purposes of masters students of the Recipient, supervised by the Recipient's staff, completing an applied student project as part of the course,

PART 2 – GENERAL TERMS

1 TERM

- 1.1 **Term:** This Agreement takes effect from the Effective Date and remains in force covering disclosures of Confidential Information from [REDACTED] to the Recipient for the same Purpose and expires five (5) years from the Effective Date unless terminated earlier in accordance with the terms of this Agreement.

2 CONFIDENTIALITY

- 2.1 **Undertakings:** In return for [REDACTED] making the Confidential Information available to the Recipient, the Recipient undertakes to [REDACTED] that it will:
- a) keep the Confidential Information secret and confidential;
 - b) not use or exploit the Confidential Information in any way except for the Purpose;
 - c) not use the Confidential Information to the detriment of [REDACTED];
 - d) not directly or indirectly disclose or make available any Confidential Information to any person, except as permitted by this Agreement;
 - e) not copy, reduce to writing or otherwise record the Confidential Information except as strictly necessary for the Purpose; and
 - f) establish and maintain adequate security measures to safeguard the Confidential Information from unauthorised use or access.
- 2.2 **Response to breach:** The Recipient will immediately notify [REDACTED] of any suspected or actual unauthorised use or disclosure of the Confidential Information and take all necessary steps to prevent or stop the suspected or actual breach.

3 DISCLOSURE TO REPRESENTATIVES

- 3.1 **Permitted disclosures:** The Recipient may disclose the Confidential Information to those of its Representatives to the extent required to achieve the Purpose.
- 3.2 **Conditions of disclosure:** In disclosing any part of the Confidential Information to a Representative, the Recipient is agreeing to:
- a) ensure that the Representative is aware of and complies with the confidentiality obligations in this Agreement (as if the Representative was the Recipient); and
 - b) be responsible for any act or omission of that Representative which constitutes a breach of this Agreement.

4 NEW CONFIDENTIAL WORKS

If, in carrying out the Purpose, or during the course of discussions with [REDACTED] the Recipient creates any summary, compilation, analysis, test report, representation or prototype (whether tangible or intangible or whether together with [REDACTED] or not) which embodies any part of the Confidential Information ("New Confidential Work"), unless otherwise expressly agreed by the parties in writing, that New Confidential Work will be deemed to be Confidential Information of [REDACTED]

5 EXCLUSIONS

- 5.1 **Exclusions:** The obligations of confidentiality and non-use in clause 2.1 of this Agreement shall not apply to any information which:

- a) the Recipient can show by written record was known to the Recipient at the time of its disclosure other than by being obtained by the Recipient either directly or indirectly from [REDACTED];
- b) is subsequently disclosed to the Recipient by a third party who or which did not obtain the same either directly or indirectly from [REDACTED] or
- c) is published, becomes public knowledge and is generally available other than by reason of some breach of this Agreement by the Recipient or any other party whom the Recipient is permitted to disclose Confidential Information pursuant to the terms of this Agreement.

- 5.2 **Disclosure required by law:** The obligations of the Recipient set out in clause 2.1 shall not apply to the extent the Recipient is obliged by law to disclose the Confidential Information, provided that the Recipient has first advised [REDACTED] of this obligation, has allowed [REDACTED] reasonable time to avoid the disclosure having to be made, and has given [REDACTED] all assistance reasonably requested by [REDACTED]

6 RETURN OF CONFIDENTIAL INFORMATION

- 6.1 **Return, deletion or destruction:** Subject to clauses 6.2 and 6.3, the Recipient agrees that upon completion of the Purpose or at the request of [REDACTED] (whichever is sooner), the Recipient will promptly return to [REDACTED] or (at [REDACTED] direction) destroy or delete, and certify to [REDACTED] in writing the destruction or deletion of, all Confidential Information in any medium (including electronic or magnetic form) in the Recipient's possession or control.
- 6.2 **Automatic Back-Ups:** The Recipient will not be required to delete Confidential Information from Automatic Back-Ups provided that such Automatic Back-Ups are securely stored and not readily accessible or searchable to Recipient Representatives in the ordinary course of business.
- 6.3 **Retention required by law:** In the event that the Recipient is required by law to retain a copy of the Confidential Information, it shall be entitled to do so provided that it:
- a) notifies [REDACTED] of this requirement no later than the completion of the Purpose; and
 - b) keeps the copy in a secure location with access restricted to appropriate Recipient employees for the sole purpose of compliance with such applicable law.

7 TERMINATION

- 7.1 **Termination by notice:** Either party may terminate this Agreement without cause by giving 30 days' written notice, or such lesser period as may be mutually agreed.
- 7.2 **Termination for cause:** This Agreement may be terminated immediately at any time by either party giving written notice to the other if the other party has not remedied a breach of this Agreement within 7 days of written notice identifying the breach and requiring the breach to be remedied.

8 CONSEQUENCES OF TERMINATION

- 8.1 **Stop use:** Upon termination of this Agreement, the Recipient will immediately stop using the Confidential Information for any purpose (including the Purpose).
- 8.2 **Obligations continue:** The obligations of the Recipient set out in clauses 2 and 6 will otherwise continue to apply with respect to any Confidential Information for a period of five (5) years from the date of expiry or termination.
- 8.3 **Accrued rights:** The termination of this Agreement will not affect any accrued rights or remedies to which either party is entitled.
- 8.4 **Survival:** Clauses 8, 9 and 10 will survive termination of this Agreement.
- 8.5 **Limitation of Liability:** The maximum aggregate liability of each party to the other party under or in connection with this Agreement is limited to [REDACTED]

9 SECURITIES TRADING RESTRICTIONS

- 9.1 The Recipient acknowledges that [REDACTED] parent company [REDACTED] is listed on the New Zealand NZX stock exchange and is subject to the NZX Main Board Listing Rules. The Recipient understands that if it comes into "material information" (as defined in section 231 of the Financial Markets Conduct Act 2013) about [REDACTED] or its Representatives, the Recipient will not deal, or encourage anyone else to deal (or to not deal), in any securities of [REDACTED]

10 GENERAL AND DEFINITIONS

- 10.1 **Remedies:** The Recipient acknowledges that damages alone may not be an adequate remedy for a breach of this Agreement. Accordingly, without prejudice to any other rights and remedies it may have, [REDACTED] will be entitled to seek equitable relief (including without limitation injunctive relief) concerning any threatened or actual breach of any of the provisions of this Agreement.
- 10.2 **Terms separate:** Each term in this Agreement is separately binding. If for any reason either party cannot rely on any term, then all the other terms remain binding.
- 10.3 **No waiver:** None of this Agreement will be considered to be waived by either party except when such waiver is given in writing.
- 10.4 **Changes:** Any changes to this Agreement must be in writing and signed by the parties.
- 10.5 **Relationship:** Nothing in this Agreement is intended to, or shall be deemed to, establish any partnership or joint venture between the parties, constitute either party the agent of the other party, or authorise either party to make or enter into any commitments for or on behalf of the other party.
- 10.6 **Counterparts:** This Agreement may be signed in separate copies, each of which will be deemed an original, and all of which together will constitute one and the same instrument. A party may enter into this Agreement by signing a counterpart copy and sending it to the other party (including by email).
- 10.7 **Notice:** Notices under this Agreement may be couriered, sent by post or emailed to the relevant address on the signature page.

- 10.8 **Governing law:** This Agreement shall be governed by the laws of New Zealand and New Zealand courts have non-exclusive jurisdiction.
- 10.9 **Interpretation:** In this Agreement:
- a) the singular includes the plural and vice versa;
 - b) references to "including" and other similar words are not to be treated as words of limitation; and
 - c) capitalised terms have the meanings set out in tables in Parts 1 or elsewhere in this Agreement.
- 10.10 **Definitions:** Unless the context otherwise requires, the following words have the following meanings:
- a) **"Agreement"** means both Parts 1 and 2 of this agreement along with any schedule attached to it and includes all amendments to the same from time to time;
 - b) **"Automatic Back-up"** means an automatic back-up of files across the Recipient's IT network on a non-selective basis that incidentally captures files containing Confidential Information as part of the Recipient's standard IT back-up or disaster recovery processes conducted in the ordinary course of business;
 - c) **"Confidential Information"** means all non-public information or data which [REDACTED] or its Representatives directly or indirectly discloses, or makes available, to the Recipient or its Representatives, before, on, or after the Effective Date. This includes:
 - i. the fact that discussions and negotiations are taking place concerning the Purpose and the status of those discussions and negotiations;
 - ii. any and all non-public information or data, whether labelled as "confidential" or not, relating to the business, affairs, systems (including without limitation [REDACTED] IT architecture and existing security processes), research, development, operations, production, products or future products of [REDACTED] or its Representatives (including without limitation prototypes, designs and features or unreleased products); and
 - iii. information disclosed or made available in any manner, including orally, in writing, electronically, or through the Recipient's visual inspection, testing of, access to or technical analysis of [REDACTED] premises, equipment, prototypes, products, systems or records;
 - d) **"Effective Date"** means the date on which this Agreement is signed by the later of the two parties; and
 - e) **"Representative"** means (i) a subsidiary or affiliate of a party; or (ii) a director, officer, employee, agent or adviser of a party or its subsidiaries or affiliates.